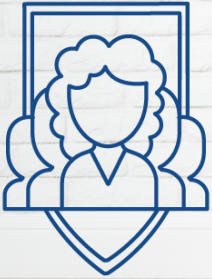


Familial Status as a Protected Class



A 1988 amendment to Title VIII of the 1968 Civil Rights Act (which became effective March 12, 1989) added families with children as a federally protected class, and made it illegal to discriminate based on familial status in the sale, rental, or financing of dwellings, and in other housing-related transactions.

Familial status includes:

- Families with children under 18 living with parents or legal custodians
- Pregnant women
- People securing custody of children under 18

Examples of illegal discrimination include:

- Housing advertisements stating that children aren't wanted
- Charging families higher rent or related fees because they have a child
- Restricting families with children to one area of a building or complex
- Denying housing to families or evicting people because they have a child
- Administering rules and procedures that unfairly target families with children
- Denying a mortgage because a person is pregnant or takes maternity leave
- Charging a higher interest rate because a person is pregnant or takes maternity leave

Source: HUD.gov